

23TRCV04072 23TRCV04072

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-27

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Case Number: 23TRCV04072 Hearing Date: July 27, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

EVERETT
SCOTT and ERION SCOTT,

Plaintiffs

Case No.:

23TRCV04072

vs.

[Tentative]
RULING RE:

MOTION
TO SET ASIDE DISMISSAL

CLINT

WINBUSH,

Defendant.

Hearing

Date: July 27, 2026

Department

P, Judge David K. Reinert

Motion

to Set Aside Dismissal

Moving

Party: Plaintiffs

Everett Scott and Erion Scott

Responding Party: None

RULING

The court

considered the moving papers. Plaintiffs' Motion to Set Aside Dismissal is GRANTED.

PROCEDURAL BACKGROUND

On December 8, 2023, Plaintiffs Everett Scott and Erion Scott (collectively, "Plaintiffs") filed a complaint against Defendant Clint Winbush ("Defendant"), alleging a single cause of action for Motor Vehicle.

On July 1, 2026, the court ordered Plaintiffs' complaint dismissed without prejudice. On the same day, Plaintiffs filed the instant motion.

FACTUAL BACKGROUND

Plaintiffs

allege that on December 12, 2021, a motor vehicle incident occurred at Crenshaw Boulevard and Hardy Street in Inglewood, California. (Complaint, p. 4.)

LEGAL STANDARD

Code of Civil Procedure Section 473(b) provides: “[t]he court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)²

Relief under Code of Civil Procedure Section 473(b) is mandatory when based on an attorney’s affidavit of fault; otherwise, it is discretionary. (English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 138.) An application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought.³ (Id. at 143.)⁴

DISCUSSION

Moving Party’s Argument

Plaintiffs move for an order setting aside the dismissal of Plaintiffs’ complaint on the grounds that the dismissal occurred due to Plaintiffs’ counsel’s mistake, inadvertence, surprise, or neglect, and thus Plaintiffs are entitled to mandatory relief. Plaintiffs argue that their counsel filed a request for default and a default judgment packet but failed to appear at the hearing and inform the court of the filing. Plaintiffs argue that their counsel was engaged in trial and had miscalendared the time of the hearing.

Merits of the Motion

Plaintiffs move to set aside the court's July 1, 2026 dismissal of Plaintiffs' complaint without prejudice. Here, Plaintiffs' counsel declares that on July 1, 2026, Plaintiffs' case was dismissed "after no party appeared in response to an Order to Show Cause re Entry of Default Judgment." (Tiomkin Decl., ¶ 2.) Plaintiffs' counsel declares that the dismissal occurred as a result of counsel's mistake, inadvertence, surprise, or neglect. (Tiomkin Decl., ¶ 3.) Here, Plaintiffs' counsel declares that on March 20, 2026, the court scheduled a July 1, 2026 Order to Show Cause hearing regarding dismissal for failure to file a default judgment, as a default had been previously entered. (Tiomkin Decl., ¶ 4.) Plaintiffs' counsel declares that a default judgment packet was filed on June 30, 2026, which was accepted in part and rejected in part on July 1, 2026. (Tiomkin Decl., ¶ 5.) Plaintiffs' counsel declares that when the court dismissed Plaintiffs' action, the filing was still pending in the queue. (Tiomkin Decl., ¶ 5.)

Next, Plaintiffs' counsel declares that he "intended to appear at the hearing, but had miscalendared the hearing for 10 am. The March 20 hearing was scheduled for 9 am, and the July 1 hearing was scheduled for 8:30 am." (Tiomkin Decl., ¶ 6.) Plaintiffs' counsel further declares that on July 1, 2026, Plaintiffs' counsel was engaged in a jury trial in another matter, and thus counsel "failed to appear and inform the Court that the judgment packet had been submitted. By the time [P]laintiffs' counsel reached the Court Clerk, the Court had already dismissed the case." (Tiomkin Decl., ¶ 6.)

The court finds that the instant motion is timely, as the court dismissed Plaintiffs' complaint on July 1, 2026, and Plaintiffs filed the instant motion on the same day. Further, Plaintiffs' motion is accompanied by the declaration of Plaintiffs' counsel, Elliott N. Tiomkin, in which Tiomkin attested that his calendaring error led to the court's dismissal of Plaintiffs' complaint. Pursuant to Code of Civil Procedure Section 473(b), relief is mandatory when based on an attorney's affidavit of fault.

Accordingly, Plaintiffs' Motion to Set Aside Dismissal is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiffs' Motion to Set Aside Dismissal is GRANTED.

Moving party is ordered to give notice of ruling.